Montgomery County District Court

Cause No. 2024-CV-0013

Jennifer Boyd, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	7-15-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant answers Plaintiff's Original Petition by generally denying each and every allegation contained therein, and Defendant demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant denies that Plaintiff is entitled to the relief sought, in whole or in part.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to control speed, and failed to maintain an assured clear distance behind the vehicle ahead. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may be barred if that percentage exceeds fifty percent.

Second, the injuries and damages claimed were caused, in whole or in part, by pre-existing or unrelated conditions, or by subsequent events for which Defendant is not responsible. Defendant is entitled to a credit or offset for any amounts paid or payable by any other person or entity on Plaintiff's behalf.

Third, Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by incurring medical expenses that were not reasonable or necessary. Defendant reserves the rgiht to amend this answer as discovery proceeds.